

Vinayak Cold Storage v. State of U.P.

Allahabad High Court · Division Bench · 3 March 2020 · Writ - C No. 7902 of 2020 · WRIT - C No. 7902 of 2020 · **Writ disposed; petitioner directed to apply to the Executive Engineer under Clause 6.14 for installments, demand to abide that decision.**

HEADNOTE

A consumer who accepts electricity arrears but seeks to pay them in installments must apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court will not itself fix installments. A challenge to a 2019 demand of Rs. 14,11,934 was disposed of with a one-week application window and a three-week decision period, the demand remaining subject to that decision.

FACTUAL SUMMARY

Vinayak Cold Storage petitioned the Allahabad High Court against a demand notice dated 9 August 2019 (later referred to in the same order as 19 August 2019) for Rs. 14,11,934 as electricity dues. The petitioner accepted the liability and asked only that it be allowed to pay the arrears in installments rather than in a lump sum. The Division Bench of Abhinava Upadhya and Shamim Ahmed, JJ. heard the writ on 3 March 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for accepted electricity dues

HOLDING

Where a consumer accepts electricity dues but seeks to discharge them in installments, the proper course is to apply to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005; the writ court will not itself fix the installments. The petitioner was directed to apply within one week and the Executive Engineer to decide within three weeks thereafter, the impugned demand remaining subject to that decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who accepts arrears and seeks only an installment facility is remitted to the Executive Engineer under Clause 6.14; the writ is not used to schedule the payments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALLMENTS UNDER CLAUSE 6.14 AND ON WHAT TERMS

Left to the Executive Engineer on an application to be made within one week of the order. ¶ 1

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 14,11,934

Petitioner accepted liability. The Court did not examine the demand, which remains subject to the Executive Engineer's decision. The order gives the demand date as 9.8.2019 in the opening and 19.8.2019 in the operative part. ¶ 1